



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 07, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21342
(FIRST REVISION)

EXPIRATION DATE: 2028-02-29

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Ultium Cells, LLC
Warren, OH
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of multiple lithium ion cells packaged within a rigid large UN packaging by highway and rail. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.185(b)(3)(ii) and (b)(6) in that multiple lithium ion cells are authorized to be packaged in UN 50H large packaging.
5. BASIS: This special permit is based on the application of Ultium Cells, LLC dated February 16, 2024, submitted in accordance with § 107.109.

Tracking Number: 2024024416

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries <i>including lithium ion polymer batteries</i>	9	UN3480	N/A

7. SAFETY CONTROL MEASURES:a. SAFETY CONTROLS:

(1) The lithium ion cells authorized under this special permit are limited to those described in Ultium Cells, LLC's application dated January 26, 2022, and on file with the Office of Hazardous Materials Safety (OHMS).

(2) All cells within the packaging must be protected against short-circuiting and damage caused by shifting or placement.

(3) Only the number of cells described in Ultium Cells, LLC's application dated January 26, 2022, and on file with the OHMS are permitted to be packed within a packaging.

b. TESTING: All lithium ion cells must be of a type that have passed all required tests as specified in the "UN Manual of Tests and Criteria, 6th Revised Edition."

c. PACKAGING:

(1) Inner packaging: Cells must be placed in non-metallic inner packagings that completely enclose and separate the cells per requirements described in §173.185(b)(3)(i).

(2) Outer packaging: Prescribed packagings are UN 50H rigid plastic large packagings that meet the Packing Group II performance level, as described in Ultium Cells, LLC's application dated January 26, 2022, and on file with the OHMS and must meet all the requirements of 49 CFR 173.185(b) (6), except that multiple cells are authorized to be packaged in a UN 50H rigid plastic large packaging.

(3) The completed packages may be stacked when transported by rail not to exceed the superimposed weight that was tested to withstand the gross weight that was directly superimposed for the stack test.

(4) The net and gross weights of a completed packaging may not exceed those as described in Ultium Cells, LLC's application dated January 26, 2022, and on file with the OHMS.

d. MARKING: Each package, and overpack if used, prepared under the provisions of this special permit must be plainly marked with the special permit number: DOT-SP 21342.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and rail freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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